

WRITTEN SUBMISSIONS · 16 MAR 1998

Written submissions

TYPE	DATE	PARTIES
Pleadings / procedural document	16 Mar 1998	Bernard Collorafi v. McDonald's France

SUMMARY SHEET

Collorafi written submissions — Paris Commercial Court · 16 March 1998

Overview: written submissions filed by the Clément law firm (Maître Jean-Paul Clément) on behalf of the companies SEBOL, B et O, LES PINS and Mr Collorafi, before the 1st chamber of the Paris Commercial Court presided over by Mr Vasseur, in the proceedings between them and McDonald's (RG 97/062466 and 98/010823).

Key points

Counsel responds to the opposing observations of Maître Jean-Marie Leloup and to a report by Mr Alain Husson Dumoutier, a former court-appointed expert. He argues that while the turnover forecasts drawn up by McDonald's were met and even exceeded, the income (profit) forecasts were not achieved, as the strategy of opening new restaurants caused the profitability of the existing units, notably SEBOL, to fall. He disputes the method of calculating the PAC (variable expenses) adopted by the former expert, considered theoretical and unrelated to the operating conditions specific to the Collorafi companies. He justifies Mr Collorafi's partial deposit of the fees into escrow as proof of good faith and invokes a judgment of the Versailles Commercial Court that found against McDonald's in favour of another franchisee.

Significance

These pleadings set out the franchisee's arguments on the franchisor's liability and the challenge to the expert reports, ahead of the first-instance decision.

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Source: bernardcollorafi.org/en/documents/written-submissions-collorafi-paris-commercial-court-mcdonalds-liability-1998/ — Documentary case file of the lawsuit Bernard Collorafi v. McDonald's France (Antibes, 1987–2002). The original scan is authoritative.